

26NNCV00318 26NNCV00318

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Case Number: 26NNCV00318 Hearing Date: September 4, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE RULING

SEPTEMBER 4, 2026

MOTION TO COMPEL FURTHER
RESPONSES

Los

Angeles Superior Court Case # 26NNCV00318

MP: Plaintiff

Daniel I. Montes

RP: Defendant

BMW of North America, LLC

NOTICE:

The Court is not requesting oral
argument on this matter. Unless the Court directs argument in the
Tentative Ruling, no argument is required and any party seeking argument should
notify all other parties and the court before the hearing of the party's

intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at BurDeptA@LACourt.org or by telephone at (818) 260-8412.

ALLEGATIONS:

Daniel I. Montes ("Plaintiff") alleges that on February 15, 2025, he leased a 2025 BMW iX, which was delivered with serious defects and nonconformities to the warranty, including electrical system defects. Plaintiff claims that despite a reasonable number of repair attempts, Defendant New Century Alhambra Automobiles, Inc. dba New Century BMW ("New Century") was unable to conform the vehicle to applicable warranties.

The Complaint, filed January 15, 2026, alleges causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; (3) Violation of the Song-Beverly Act, § 1793.2; and (4) Negligent Repair.

MOTION ON CALENDAR:

On August 4, 2026, Plaintiff filed a Motion to Compel Defendant's Further Responses to Requests for Production of Documents, set one ("RPD").

On August 24, 2026, BMW filed an opposition. On August 27, 2026, Plaintiffs filed a reply.

LEGAL STANDARD:

A motion to compel further RPD responses may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (C.C.P. § 2031.310(a).)

A motion to compel further production must set forth specific facts showing good cause

justifying the discovery sought by the inspection demand and be accompanied by a meet and confer declaration. (C.C.P. § 2031.310(b)(1).) “Good cause” is shown by “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224.) The motion must be made within 45 days of service of the verified response or supplemental verified response, or on/before any specific late date to which the parties have agreed in writing. (C.C.P. § 2031.310(c).)

If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court of Los Angeles County (2002) 95 Cal. App.4th 92, 98.)

ANALYSIS:

A.

Meet and Confer
Efforts

On March 16, 2026, Plaintiff propounded the RPD on BMW. (Gopstein Decl., ¶13, Ex. 3.) On April 16, 2026, Defendant provided unverified responses/objections and did not produce documents. (Id., ¶14, Ex. 4.) On June 23, 2026, Plaintiff's counsel sent defense counsel a meet and confer letter. (Id., ¶¶16-19, Ex. 5.) Plaintiff's counsel, Daniel Gopstein, states that BMW did not respond to the meet and confer efforts or provide supplemental responses. (Id., ¶20.)

In opposition, BMW's counsel, Eric Achatz, states that on July 9, 2026, BMW expressly requested to meet and confer, though the motion papers had been filed earlier that day. (Achatz Decl., ¶2, Ex. A.) (The Court notes that there is no July 9, 2026 filing in this case from any party. Rather, this motion was filed on August 4, 2026.) On June 29, 2026, BMW sent a Statutory Offer to Compromise pursuant to C.C.P. § 998 and on July 9, 2026, sought to discuss the 998 offer and the RPDs. (Id.) On July 10, 2026, the parties had a call to reschedule the meet and confer call and, on July 17, 2026, Plaintiff emailed a brief

summary of requested documents but did not include additional times for a call. (Id., ¶3, Ex. A.) Mr. Achatz followed up to meet and confer on August 4, 7, 17, and 19, 2026, but Plaintiff did not respond to the emails. (Id., ¶¶4-5, Ex. B.)

Here, the meet and confer attempts are lacking. While Plaintiff sent an initial 11-page meet and confer letter, it appears that the parties failed to arrange a telephone call to discuss the outstanding discovery. Furthermore, in opposition, BMW states that it offered to produce some documents subject to a protective order, but such offer was ignored. (Opp. at p.5.) (A review of the Court's records show that a Protective Order was entered on July 15, 2026—before BMW's opposition was due on August 24, 2026.) The Court notes that Plaintiff's reply does not further address the meet and confer efforts.

The Court will continue the hearing on this motion to allow the parties sufficient time to meet and confer.

To provide guidance to the parties, the Court notes that in its review of the RPDs at issue, many of the RPDs are not narrowly tailored as drafted.

For example, RPD Nos. 23-29 seek documents from 2020 to the present, but the subject vehicle is a 2025 BMW iX, such that it is unclear why documents dating back from 2020 are necessary. Additionally, these RPDs are not limited by geographical region or to vehicles of the same year, make, and model as the subject vehicle. Thus, the RPDs could seek potentially any and all warranty policy and procedural manuals for any and all BMW-authorized repair facilities regarding the repair of any type of warranted vehicle, etc. Furthermore, terms like "repeated repair visits" and "similar complaints by the consumer" in RPD No. 25 are vague and overly broad without any limitations. RPD No. 31 is similarly overbroad and without limitation as to scope. Finally, RPD No. 30 is not narrowly tailored with respect to its reference of "substantially similar" complaints. The complaint

alleges electrical system defects, but provides no further specifics on what these defects contain. Thus, the parties should meet and confer regarding limiting the RPDs to relevant time periods; by geographical region; to vehicles of the same year, make, and model as the subject vehicle; and by the specific defects or specific line items of the repairs orders.

The filing of unverified response is simply unacceptable and results in the misuse of Court time and opposing counsel's time. As such, the Court will order that verified responses be provided within 10 days. However, the parties likewise failed to properly meet and confer which likewise is a misuse of the Court's time to resolve issues. The meet and confer requirement is not a mere formality. "This rule is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order. This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1016.).

Inadequate efforts to informally resolve a discovery dispute may be sufficient, by themselves, to support the denial of a motion to compel discovery responses, depending upon the particular circumstances of the case. (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 433, 435; Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1433, 1438- 1439 (heated discussions during a deposition did not constitute a serious effort at negotiation and informal resolution; informal resolution requirement was "not fulfilled when the proponent, immediately following an objection, merely debates with the deponent's counsel the propriety of the objection"). The parties are ordered to telephonically or in person meet and confer regarding the discovery issues. As previously discussed, Mr. Achatz followed up to meet and confer on August 4, 7, 17, and 19, 2026, but Plaintiff did not respond to the emails. (Id., ¶¶4-5, Ex. B.). The Court finds this to be a significant failure to meet and confer in good faith as mandated by the Code of Civil Procedure. Due to the failure to adequately meet and confer, in lieu of monetary sanctions the motion will be denied without prejudice.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff Daniel I.

Montes's Motion to Compel Further Responses came on regularly for hearing on September 4, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

DEFENDANT

BMW OF NORTH AMERICA IS ORDERED TO PROVIDE VERIFIED RESPONSES TO THE PREVIOUSLY PROVIDED UNVERIFIED RESPONSES WITHIN 10 DAYS.

THE PARTIES ARE ORDERED TO MEET AND CONFER TELEPHONICALLY, VIA VIDEO CONFERENCE OR IN PERSON WITHIN 30 DAYS.

DUE

TO A FAILURE TO PROPERLY MEET AND CONFER PRIOR TO THIS MOTION, THE MOTION TO COMPEL FURTHER DISCOVERY IS DENIED WITHOUT PREJUDICE.

PLAINTIFF

TO GIVE NOTICE.

IT IS SO

ORDERED.